UPSC INDIAN POLITY

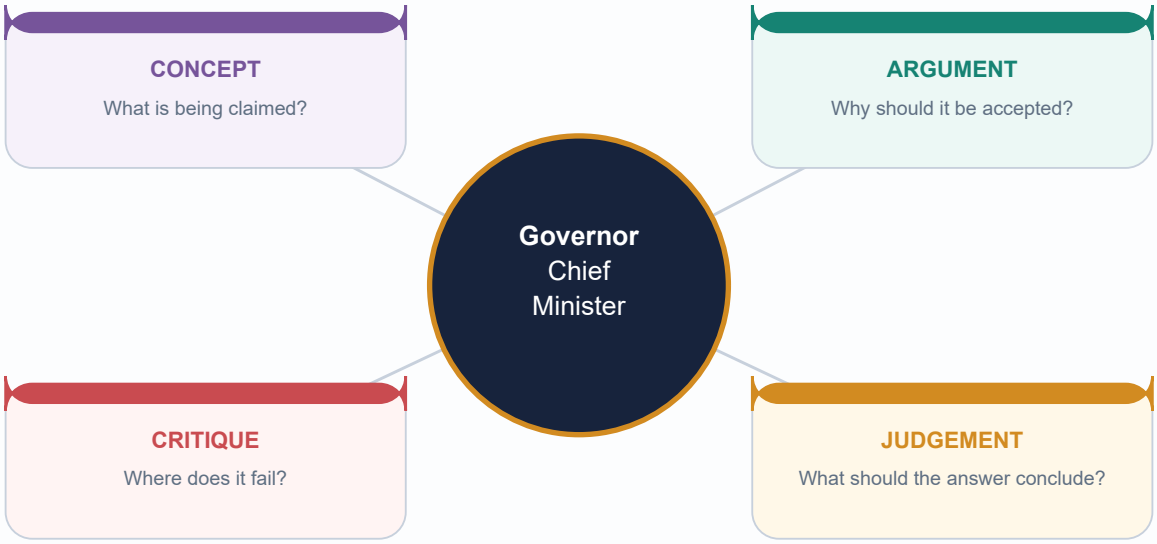
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Governor-and-CM.md + 19_Governor-CM-State-Council.md

Learning cards: 46



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic · **GS Paper:** GS-II · **Grounded in:** Laxmikant Ch. 30–32.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ book · □□ inference · □ current. *Advanced: optional deeper detail in advanced/19_Governor-CM-State-Council.md — not required for any mark.*

MUST-KNOW FACTS

1. book · □□ inference · □ current. *Advanced: optional deeper detail in advanced/19_Governor-CM-State-Council.md — not required for any mark.*

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Governor	Chief Minister
Role	□ Nominal head (de jure)	□ Real executive (de facto)
Chosen by	Appointed by **President**	Appointed by **Governor**
Min age	□ **35**	25 (MLA) / 30 (MLC)
Tenure	5 yrs, but **President's pleasure**	Governor's pleasure (safe while holds majority)
Key articles	153–162	164, 167

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

 States mirror the Centre's **parliamentary system**: the **Governor is the nominal head**, the **CM + Council of Ministers is the real executive** (Art 163). The CoM is **collectively responsible to the Legislative Assembly** (Art 164). The Governor is the constitutional State head but is appointed by the Union executive; the resulting federal linkage is often described as a "dual role", not a licence to act as a Central agent.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

V

Dimension 1 States mirror the Centre's parliamentary system: the Governor is the nominal head, the CM + Council of Ministers is the real executive (Art 163). Th	**Dimension 2** Governor ≠ President on 2 points: the Governor can act in discretion, and ministerial advice is
Dimension 3 not framed in Article 163 by the same express binding-advice language used in Article 74. This textual	**Dimension 4** difference does not create general discretion: Shamsher Singh (1974) keeps advice as the rule.

STATIC THEORY

- **Governor ≠ President on 2 points:** the Governor **can act in discretion**, and ministerial advice is

- **not framed in Article 163 by the same express binding-advice language used in Article 74**. This textual

- difference does not create general discretion: *Shamsher Singh* (1974) keeps advice as the rule.

- **91st Amdt:** State ministers **≤ 15% of the Assembly, minimum 12**.

MEMORY HOOK

Governor ≠ President on 2 points: the Governor can act in discretion, and ministerial advice is | 91st Amdt: State ministers ≤ 15% of the Assembly, minimum 12.

MUST-KNOW FACTS

1. States mirror the Centre's **parliamentary system**: the **Governor is the nominal head**, the **CM + Council of Ministers is the real executive** (Art 163). The CoM is **collectively responsible to the Legislative Assembly** (Art 164). The Governor is the constitutional State head but is appointed by the Union executive; the resulting federal linkage is often described as a "dual role", not a licence to act as a Central agent.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Governor's discretion (remember these)

GS-II Indian Polity

INTRO & ORIGIN

 Express: reserving a bill for the President; recommending President's Rule. **Situational:** appointing CM in a hung house; dismissing a CoM that lost confidence; dissolving the Assembly.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Express: reserving a bill for the President; recommending President's Rule. **Situational:** appointing CM in a hung house; dismissing a CoM that lost confidence; dissolving the Assembly.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Governor's discretion (remember these)

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

 Governor **nominates 1/6** of the Legislative Council; cannot **pardon** a death

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 Governor nominates 1/6 of the Legislative Council; cannot pardon a death	**Dimension 2** sentence, but may suspend, remit or commute it under Art 161. Court-martial sentences remain outside Art 161.
Dimension 3 A Governor is Chancellor of many state universities under the relevant state	**Dimension 4** university statutes, not by virtue of the Constitution; models vary by state.

STATIC THEORY

- sentence, but may **suspend, remit or commute** it under Art 161. Court-martial sentences remain outside Art 161.

- A Governor is Chancellor of many state universities **under the relevant state

- university statutes**, not by virtue of the Constitution; models vary by state.

- Non-MLA can be CM for **6 months**; CM may be from either House.

- A CM participates in the **Inter-State Council** and the **NITI Aayog Governing Council**. Planning-board

- or similar State institutions depend on the State's current administrative design and should not be universalised.

MUST-KNOW FACTS

1. Governor **nominates 1/6** of the Legislative Council; cannot **pardon** a death

2. Non-MLA can be CM for **6 months**; CM may be from either House.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · □ Current link

GS-II Indian Polity

NEWS TRIGGER

□ □ **Current doctrine (20 Nov 2025, *In re: Assent, Withholding or Reservation of Bills*, 2025 INSC 1333):** Articles 200/201 contain no court-created rigid timelines or automatic deemed assent. Yet prolonged, unexplained and indefinite gubernatorial inaction is open to limited judicial scrutiny and mandamus. This later Article 143 opinion qualifies the timeline/deemed-assent reasoning in *State of Tamil Nadu v. Governor of Tamil Nadu* (8 Apr 2025). □□ The full powers, the discretion analysis, the traps and the Mains angles are all held **in this file**. *Advanced: optional deeper detail in advanced/19_Governor-CM-State-Council.md — not required for any mark.*

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Purpose: make this Core file independently answer directive-sensitive GS-II questions on the Governor's appointment, discretion, legislative powers (assent, reservation, ordinances) and role in government formation, and on the Chief Minister and State Council — without opening Advanced. The analytical engine is the tension between a constitutional State head and Union appointment/pleasure tenure, not an assumption that the Governor is legally the Centre's agent.

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 6.0 Direct Mains demands owned by this Core file

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 6.0 Direct Mains demands owned by this Core file.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

***2022 · GS-II · Q12** — Demand (neutral rendering): the Governor's legislative powers and the re-promulgation of ordinances. Directive: **Discuss · 15 marks · 250 words**. **Core routing supersedes the older advanced/19_Governor-CM-State-Council.md pointer for this demand. Executable route:** (1) **Thesis** — the Governor's legislative powers are head-of-state functions to be exercised on ministerial advice, but the **discretion embedded in assent/reservation** and the **temptation to re-promulgate ordinances** have turned them into instruments of Centre–State friction; serial re-promulgation is a fraud on the Constitution. (2) **The legislative powers** — the Governor is **part of the State Legislature (Art 168)**; he **summons, prorogues and dissolves** the Assembly (Art 174), **addresses and sends messages** (Art 175–176), **nominates one-sixth of the Legislative Council** (Art 171), assents to Bills with four options under **Art 200** (assent / withhold / return / **reserve for the President**), triggering **Art 201**, and promulgates **ordinances under Art 213**. (3) **Assent as a pressure point** — Art 200's power to reserve (mandatory under the **second proviso** where a Bill would derogate from the **High Court's** powers) has been used to sit on Bills; □□ Nabam Rebia (2016) held the Governor's summoning/message powers are **normally bound by aid and advice (Art 163)**, discretion being narrow. (4) **Re-promulgation** — Art 213 ordinances need the Assembly not in session and **cease six weeks** after it reassembles; □ D.C. Wadhwa v. State of Bihar (1986; reported 1987) struck down Bihar's serial re-promulgation as a **"fraud on the Constitution"**; □ Krishna Kumar Singh v. State of Bihar (2017) (**seven-judge Bench, 5:2**) reaffirmed it and made **laying the ordinance before the legislature mandatory (Art 213(2))**, with the satisfaction **judicially reviewable**. (5) **Current status** — □ the five-judge **Article 143 opinion of 20 Nov 2025** held Art 200/201 permit **no court-created rigid timelines or automatic deemed assent**, while **prolonged, unexplained inaction** is open to limited review and mandamus. (6) **Verdict** — the powers are constitutional, but their legitimacy depends on their being exercised as a nominal head's, not a Centre's agent's.*

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.0 Direct Mains demands owned by this Core file

HIGH

Foundation · 6.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
Governor's discretion	"agent of the Centre", "codify discretion", Critically examine	Art 163 aid-and-advice → express + situational discretion → *Shamsher Singh/Bommai* → reform bodies → verdict
Legislative powers / assent	"sit on Bills", "reservation", Discuss	Art 168/174/200/201/213 → discretion in reservation → 2025 assent doctrine → verdict
Ordinance re-promulgation	"fraud on the Constitution", Examine	Art 213 limits → *Wadhwa/Krishna Kumar Singh* → mandatory laying → verdict
Government formation	"hung Assembly", "floor test", Comment	Appointment of CM → discretion → floor test (*Bommai/Rameshwar Prasad*) → verdict
Appointment / removal reform	"Sarkaria/Punchhi", "pleasure doctrine", Suggest	Art 155/156 → pleasure insecurity → commission recommendations → verdict
CM and State CoM	"real executive", "collective responsibility", Distinguish	Art 163/164/167 → CM powers → 15% cap → Assembly responsibility

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.1 Demand and directive map

HIGH

Foundation · 6.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The Governor is constitutionally a nominal State head but structurally a Union appointee, and the friction of Indian federalism lives precisely in that dual identity — the office is designed to bridge Centre and State but is repeatedly used to tilt between them.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.2 QUALIFIED THESIS OPTIONS: RECALL MAP

6.2 Qualified thesis options

V

Dimension 1 The Governor is constitutionally a nominal State head but structurally a Union appointee, and the friction of Indian federalism lives precisely in tha	**Dimension 2** The Governor's legislative powers are ministerial in principle and discretionary in temptation; assent, reservation and ordinance re-promulgation are
Dimension 3 The pleasure doctrine (Art 156) is the root of the Governor's dependence: without security of tenure, the incumbent has every incentive to please the	**Dimension 4** Since S.R. Bommai (1994), the Governor's most political powers — President's Rule and government formation — are judicially reviewable and settled on

STATIC THEORY

- The Governor's legislative powers are ministerial in principle and discretionary in temptation; assent, reservation and ordinance re-promulgation are where a head-of-state function is most easily turned into a Centre's veto.

- The pleasure doctrine (Art 156) is the root of the Governor's dependence: without security of tenure, the incumbent has every incentive to please the Centre that appointed and can remove him, which is why every reform commission has attacked tenure first.

- Since S.R. Bommai *(1994), the Governor's most political powers — President's Rule and government formation — are judicially reviewable and settled on the floor, so the modern check on Raj Bhavan is the courtroom and the confidence vote, not convention.*

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.2 Qualified thesis options

HIGH

Foundation · 6.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → the relevant power/provision → one case or instance → one limitation → verdict	2–3 units, at least one Article + one case
15	Thesis → provision → discretion/limits → named cases → reform bodies or current status → qualified verdict	5–6 units
20	Thesis → constitutional design (Art 153–163) → the specific powers → case-law limits → discretion instances → reform/federal debate → graded verdict	6–8 units + a text-vs-practice paragraph

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.3 Mark-scaled structures

HIGH

Foundation · 6.4 Bank A — Appointment, tenure and the pleasure doctrine

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Claim	Named anchor	Mechanism / significance	Limitation / caution
The Governor is a central appointee, not an elected head	□ **Art 155**	**Appointed by the President** by warrant (Canadian model), not elected	An "independent constitutional office", not a Central-government employee (SC 1979)
Qualifications are minimal	□ **Art 157–158**	Citizen of India, **35 years**; no office of profit; oath by the **High Court Chief Justice**	Conventions (outsider to the State; consult the CM) are **often breached**
Tenure is insecure by design	□ **Art 156**	5-year term **but holds office during the pleasure of the President** — removable anytime, no grounds	No security of tenure; transferable and re-appointable; mass changes follow regime change
Executive power is formally his	□ **Art 154**	All State executive action runs in the Governor's name	Exercised through the CoM (Art 163)
Personal immunity attaches to the office	□ **Art 361**	**Not answerable to any court** for the exercise of office powers; **no criminal proceedings and no arrest** during his term; civil suits only after **two months' notice**	This is **Art 361 office immunity**, distinct from Art 194 members' privilege — the Governor is **not** a member of the House
One person may head several States	□ **Art 153 (proviso, 7th Amdt 1956)**	The **same person can be appointed Governor of two or more States**	A structural fact, not a discretionary power

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.4 Bank A — Appointment, tenure and the pleasure doctrine

HIGH

Foundation · 6.4 Bank A — Appointment, tenure and the pleasure doctrine

GS-II Indian Polity

INTRO & ORIGIN

Reform bodies (appointment/removal/discretion): □□ **Sarkaria (1988)** — eminent outsider, non-partisan, appointed after consulting the CM, removed only for compelling reasons; □□ **Punchhi (2010)** — fixed tenure, removal by a State-legislature process, provision to impeach; □□ **Venkatachaliah/NCRWC (2002)** — appointment by a committee (PM, Home Minister, LS Speaker, State CM), tenure not to be disturbed save in rare cases. (All are **proposals, not law**.)

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.4 Bank A — Appointment, tenure and the pleasure doctrine

HIGH

Foundation · 6.5 Bank B — Discretion (the analytical core)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Type	Named anchor	Instances	Caution
□ **Express (constitutional) discretion**	Art 163(1)/200/356	**Reserving a Bill for the President** (Art 200); **recommending President's Rule** (Art 356); functioning as **UT administrator** (additional charge); Sixth Schedule tribal-royalty (Assam etc.)	Here ministerial advice does **not** bind
□□ **Situational (implied) discretion**	Convention	**Appointing a CM in a hung Assembly**; **dismissing a CoM that has lost confidence**; **dissolving the Assembly** when the CoM has lost majority	Must be exercised as a constitutional head, not a partisan
□ **Finality clause with a rider**	**Art 163(2)**	Whether a matter falls in his discretion is decided by the Governor and "**shall be final**"; the validity of what he does "**shall not be called in question**"	□□ *Nabam Rebia* (2016): this does **not** create unlimited discretion — the enumerated/necessarily-implied fields are narrow

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.5 Bank B — Discretion (the analytical core)

HIGH

Foundation · 6.5 Bank B — Discretion (the analytical core)

GS-II Indian Polity

INTRO & ORIGIN

Special-responsibility caution: Article **371A(1)(b)** (Nagaland) and Article **371H(a)** (Arunachal Pradesh) expressly provide a law-and-order special responsibility exercised in individual judgment after consulting the Council of Ministers. Sixth Schedule provisions separately assign specified functions in autonomous tribal-area administration. These exceptional texts must not be generalised to all Governors.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.5 BANK B — DISCRETION (THE ANALYTICAL CORE): RECALL MAP

6.5 Bank B — Discretion (the analytical core)

V

Dimension 1 Special-responsibility caution: Article 371A(1)(b) (Nagaland) and Article 371H(a) (Arunachal Pradesh) expressly provide a law-and-order special respon	**Dimension 2** Governing cases (propositions, not name-drops):
Dimension 3 □ Shamsher Singh v. State of Punjab (1974) (seven-judge Bench) — the Governor exercises powers on the aid and advice of the CoM save in a few well-rec	**Dimension 4** □ S.R. Bommai v. Union of India (1994) (nine-judge Bench) — Art 356 is judicially reviewable; majority is tested by a floor test, not the Governor's s

STATIC THEORY

- **Governing cases (propositions, not name-drops):**

- □ *Shamsher Singh v. State of Punjab (1974)* (seven-judge Bench) — the Governor exercises powers **on the aid and advice** of the CoM save in a few well-recognised exceptional situations; he is a **constitutional head**.

- □ *S.R. Bommai v. Union of India (1994)* (nine-judge Bench) — **Art 356 is judicially reviewable**; majority is tested by a **floor test**, not the Governor's subjective satisfaction; federalism is a **basic feature**.

- □ *Rameshwar Prasad v. Union of India (2006)* — dissolution of the Bihar Assembly on the Governor's report of anticipated horse-trading was **unconstitutional/mala fide**; apprehension cannot substitute for a floor test.

- □□ *Nabam Rebia v. Deputy Speaker (2016)* — the Governor's power to summon/prorogue and to send messages is **normally bound by aid and advice**; he cannot use discretion to enlarge his own role.

- □ ***Subhash Desai v. Principal Secretary, Governor of Maharashtra*** **(Constitution Bench, 11 May 2023)** — arising from the 2022 Maharashtra crisis. **Proposition on the Governor:** he was **not justified** in calling a floor test on the material before him, because a floor test may be ordered only on **objective material** giving reason to believe the incumbent government has lost confidence; **intra-party dissent, letters from a faction, or apprehension of instability are not such material**, and the Governor must not enter the political arena or lend his office to resolving an internal party dispute. **Second proposition:** because the incumbent Chief Minister **resigned without facing the floor test**, the Court held the **status quo ante could not be restored**, and the subsequent invitation to the leader commanding support was therefore not open to challenge. *Significance:* the sharpest available statement that the floor test is a **remedy for a demonstrated doubt, not a tool for creating one** — pair it with *Bommai* (floor test as the sole test of majority) and *Rameshwar Prasad* (apprehension is not evidence). *Limitation:* □□ the judgment gave **no relief** on the facts; do not present it as having reinstated any government or disqualified any member. Its Tenth-Schedule holdings (whip belongs to the **political party**; ECI may decide a symbol dispute in parallel) are developed in Anti-Defection-Law.md §5.5, and the *Nabam Rebia* question on a Speaker facing a removal notice was **referred to a larger seven-judge Bench and remains undecided**.

MUST-KNOW FACTS

1. *Shamsher Singh v. State of Punjab (1974)* (seven-judge Bench) — the Governor exercises powers **on the aid and advice** of the CoM save in a few well-recognised exceptional situations; he is a **constitutional head**.

2. *S.R. Bommai v. Union of India (1994)* (nine-judge Bench) — **Art 356 is judicially reviewable**; majority is tested by a **floor test**, not the Governor's subjective satisfaction; federalism is a **basic feature**.

3. *Rameshwar Prasad v. Union of India (2006)* — dissolution of the Bihar Assembly on the Governor's report of anticipated horse-trading was **unconstitutional/mala fide**; apprehension cannot substitute for a floor test.

4. ***Subhash Desai v. Principal Secretary, Governor of Maharashtra*** **(Constitution Bench, 11 May 2023)** — arising from the 2022 Maharashtra crisis. **Proposition on the Governor:** he was **not justified** in calling a floor test on the material before him, because a floor test may be ordered only on **objective material** giving reason to believe the incumbent government has lost confidence; **intra-party dissent, letters from a faction, or apprehension of instability are not such material**, and the Governor must not enter the political arena or lend his office to resolving an internal party dispute. **Second proposition:** because the incumbent Chief Minister **resigned without facing the floor test**, the Court held the **status quo ante could not be restored**, and the subsequent invitation to the leader commanding support was therefore not open to challenge. *Significance:* the sharpest available statement that the floor test is a **remedy for a demonstrated doubt, not a tool for creating one** — pair it with *Bommai* (floor test as the sole test of majority) and *Rameshwar Prasad* (apprehension is not evidence). *Limitation:* □□ the judgment gave **no relief** on the facts; do not present it as having reinstated any government or disqualified any member. Its Tenth-Schedule holdings (whip belongs to the **political party**; ECI may decide a symbol dispute in parallel) are developed in Anti-Defection-Law.md §5.5, and the *Nabam Rebia* question on a Speaker facing a removal notice was **referred to a larger seven-judge Bench and remains undecided**.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.5 Bank B — Discretion (the analytical core)

HIGH

Foundation · 6.6 Bank C — Legislative powers, assent and ordinances

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Power	Named anchor	Mechanism	Limitation / status
Part of the State Legislature	□ **Art 168**	The Legislature of a State consists of the Governor and the House(s)	—
Summon / prorogue / dissolve	□ **Art 174**	Convenes and ends sessions; dissolves the Assembly	Normally on advice (*Nabam Rebia*)
Nominate to the Council	□ **Art 171**	Nominates **one-sixth** of the Legislative Council (in bicameral States)	Nominates to the **Council**, never to the **Assembly**
Assent to Bills	□ **Art 200**	Assent / withhold / **return** (non-Money Bill) / **reserve for the President**	Reservation is **mandatory** (second proviso) where a Bill derogates from the **High Court's** powers
President's action on reserved Bills	□ **Art 201**	President may assent, withhold, or direct the Governor to return it	The President is **not bound to assent** even if the House re-passes it
Ordinances	□ **Art 213**	Law with the force of an Act when the Assembly is not in session; **ceases six weeks** after reassembly	**Cannot be serially re-promulgated** (*Wadhwa*, *Krishna Kumar Singh*); **must be laid** before the House

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.6 Bank C — Legislative powers, assent and ordinances

HIGH

Foundation · 6.6 Bank C — Legislative powers, assent and ordinances

GS-II Indian Polity

INTRO & ORIGIN

Pardon caution (Art 161): □ the Governor may **pardon, reprieve, respite, remit, suspend or commute** a sentence, including a death sentence, when the offence is against a law within State executive power; **court-martial remains outside Article 161** — never merge Art 161 with the President's Art 72.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Pardon caution (Art 161): the Governor may **pardon, reprieve, respite, remit, suspend or commute** a sentence, including a death sentence, when the offence is against a law within State executive power; **court-martial remains outside Article 161** — never merge Art 161 with the President's Art 72.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.6 Bank C — Legislative powers, assent and ordinances

HIGH

Foundation · 6.7 Bank D — Chief Minister and the State Council of Ministers

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Claim	Named anchor	Mechanism	Caution
The CM is the real State executive	**Art 164**	Appointed by the Governor (leader of the majority; discretion in a hung Assembly/sudden death); heads the CoM; his resignation/death **dissolves the whole CoM**	A **non-MLA can be CM for six months**; may be from either House
The CoM aids and advises, with a discretion carve-out	**Art 163**	The CoM headed by the CM aids and advises the Governor **except** where he acts in discretion	Advice is **not expressly binding** (no 42nd-Amdt equivalent)
Size is capped and defection barred	**Art 164(1A)/(1B)** (91st Amdt)	Total ministers **≤ 15% of the Assembly**, **minimum 12**; defectors barred from ministership	The base is the **Assembly**, not both Houses
The CoM answers to the elected House	**Art 164(2)**	**Collectively responsible to the Legislative Assembly**	The Council (where it exists) cannot remove the ministry
The CM is the Governor's channel	**Art 167**	Duty to communicate CoM decisions and furnish information the Governor seeks (parallels Art 78)	The Governor may seek information as a check

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.7 Bank D — Chief Minister and the State Council of Ministers

HIGH

Foundation · 6.8 Mechanism, institutional incentives and consequences

GS-II Indian Polity

INTRO & ORIGIN

□□ **Why the dual role generates friction:** the Governor is a nominal head under Art 163 but a Union appointee under Art 155 who serves at pleasure under Art 156 — the incentive structure rewards responsiveness to the Centre, which is why assent delays and President's-Rule reports cluster where the State and Centre are governed by rival parties.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.8 MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES: RECALL MAP

6.8 Mechanism, institutional incentives and consequences

V

Dimension 1 □□ Why the dual role generates friction: the Governor is a nominal head under Art 163 but a Union appointee under Art 155 who serves at pleasure under	**Dimension 2** □□ Why re-promulgation recurs: Art 213 lets the executive legislate when the Assembly is not sitting; a government without a settled majority has an i
Dimension 3 □□ Consequence of the pleasure doctrine: tenure remains structurally dependent, but B.P. Singhal v.	**Dimension 4** Union of India (2010) holds that pleasure is not arbitrary power: a Governor cannot be removed on capricious, unreasonable or mala fide grounds, thoug

STATIC THEORY

- □□ **Why re-promulgation recurs:** Art 213 lets the executive legislate when the Assembly is not sitting; a government without a settled majority has an incentive to keep re-issuing ordinances rather than face the House — the very abuse *Wadhwa* and *Krishna Kumar Singh* had to make mandatorily reviewable by requiring laying.

- □□ **Consequence of the pleasure doctrine:** tenure remains structurally dependent, but *B.P. Singhal v.

- Union of India* (2010) holds that pleasure is not arbitrary power: a Governor cannot be removed on capricious, unreasonable or mala fide grounds, though the Union need not disclose reasons as a routine rule.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.8 Mechanism, institutional incentives and consequences

HIGH

Foundation · 6.9 Criticism, counter-argument and variation

GS-II Indian Polity

INTRO & ORIGIN

"Agent of the Centre" critique: □□ discretionary reservation of Bills, President's-Rule reports and VC-appointment disputes let the office be used against elected State governments (Tamil Nadu, Kerala, Punjab, West Bengal).

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.9 CRITICISM, COUNTER-ARGUMENT AND VARIATION: RECALL MAP

6.9 Criticism, counter-argument and variation

V

Dimension 1 "Agent of the Centre" critique: □□ discretionary reservation of Bills, President's-Rule reports and VC-appointment disputes let the office be used aga	**Dimension 2** Counter (the office is constrained): □□ Bommai made President's Rule reviewable and the floor test decisive, Rameshwar Prasad voided a mala fide disso
Dimension 3 Federal/State variation: □□ friction is sharpest where the Centre and State are ruled by opposed parties and negligible where they are aligned — the o	**Dimension 4** Implementation constraint: □□ reform recommendations (Sarkaria, Punchhi, NCRWC) remain unimplemented; the pleasure doctrine survives, so the checks ar

STATIC THEORY

- **Counter (the office is constrained):** □□ *Bommai* made President's Rule reviewable and the floor test decisive, *Rameshwar Prasad* voided a mala fide dissolution, and the 2025 assent doctrine exposes indefinite inaction to review — Raj Bhavan now acts under judicial shadow.

- **Federal/State variation:** □□ friction is sharpest where the Centre and State are ruled by opposed parties and negligible where they are aligned — the office's behaviour tracks political alignment, not constitutional text.

- **Implementation constraint:** □□ reform recommendations (Sarkaria, Punchhi, NCRWC) remain **unimplemented**; the pleasure doctrine survives, so the checks are judicial and episodic rather than structural.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.9 Criticism, counter-argument and variation

HIGH

Foundation · 6.10 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Discretion verdict: "The Governor's discretion is legitimate only when exercised as a constitutional head; *Shamsher Singh* and *Bommai* have narrowed it to the point where the floor of the House, not the opinion of Raj Bhavan, settles who governs."

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.10 VERDICT SCAFFOLDS: RECALL MAP

6.10 Verdict scaffolds

V

Dimension 1 Discretion verdict: "The Governor's discretion is legitimate only when exercised as a constitutional head; Shamsher Singh and Bommai have narrowed it	**Dimension 2** Assent/ordinance verdict: "The Governor may withhold and reserve, but he may not sit forever or rule by re-promulgation; Krishna Kumar Singh and the 2
Dimension 3 Reform verdict: "Every commission from Sarkaria to Punchhi has diagnosed the same disease — tenure at pleasure — and prescribed the same cure — securi	

STATIC THEORY

- **Assent/ordinance verdict:** "The Governor may withhold and reserve, but he may not sit forever or rule by re-promulgation; *Krishna Kumar Singh* and the 2025 reference together convert an open-ended power into a reviewable one."

- **Reform verdict:** "Every commission from Sarkaria to Punchhi has diagnosed the same disease — tenure at pleasure — and prescribed the same cure — security of tenure and consultative appointment; the gap is not analysis but implementation."

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.10 Verdict scaffolds

HIGH

Foundation · 6.11 Prelims close-option distinctions

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair / routed demand	Correct discrimination
Governor's discretion + reserving a State Bill (2025 Q54)	□ **Reserving a Bill for the President (Art 200) is a discretionary power**; the President may then assent/withhold/return (Art 201) and is **not bound to assent** even after re-passage
Governor's immunity + words in the Legislature (2025 Q59)	□ The Governor's protection is **Art 361 office immunity** (no criminal proceedings/arrest during term); immunity for **words spoken in the Legislature (Art 194)** belongs to **members** — the Governor is **not a member**
Criminal proceedings + emoluments protection (2018 Q41)	□ **Art 361** — no criminal proceedings against the Governor during his term; □ his **emoluments/allowances cannot be diminished** during his term
Ideal appointment criteria (2019 Q66)	□ **Sarkaria/Punchhi/NCRWC** — eminent outsider, non-partisan, not a recent active politician, appointed after **consulting the CM**
President vs Governor pardon	□ Governor (Art 161) may pardon within the State offence-law field but has no court-martial limb; President (Art 72) also covers court-martial and every death sentence
Nomination target	□ The Governor nominates to the **Legislative Council** (one-sixth), **never** to the Assembly
Advice binding?	□ **Not expressly binding** on the Governor (no 42nd-Amdt equivalent), unlike the President
State CoM cap	□ **15% of the Assembly, minimum 12** (91st Amdt) — not of both Houses

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.11 Prelims close-option distinctions

HIGH

Foundation · 6.12 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

 The Governor is **appointed (Art 155), not elected**; minimum age **35 (Art 157)**. **Art 156** — holds office **during the President's pleasure**; there is **no security of tenure** and no fixed enforceable 5-year right. **Art 161 ≠ Art 72:** the Governor may pardon within the State offence-law field, including a death sentence, but cannot exercise court-martial clemency.

INTRO & ORIGIN

 Distinguish **Art 361** (Governor's personal immunity) from **Art 194** (members' freedom of speech) — do not attribute Art 194 immunity to the Governor.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.12 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

6.12 Factual-risk and current-status controls

V

Dimension 1 Distinguish Art 361 (Governor's personal immunity) from Art 194 (members' freedom of speech) — do not attribute Art 194 immunity to the Governor.	**Dimension 2** Case propositions, not name-drops: Shamsher Singh = act on advice; Bommai = reviewable Art 356 + floor test; Rameshwar Prasad = mala fide dissoluti
Dimension 3 Assent doctrine (Art 200/201): State of Tamil Nadu v. Governor of Tamil Nadu (8 Apr 2025, 2025 INSC 481) prescribed timelines/used deemed assent on	**Dimension 4** Sarkaria/Punchhi/NCRWC recommendations are proposals, not law — do not present them as enacted.

STATIC THEORY

- Case propositions, not name-drops: *Shamsher Singh* = act on advice; *Bommai* = reviewable Art 356 + floor test; *Rameshwar Prasad* = mala fide dissolution void; *Nabam Rebia* = discretion is narrow; *Wadhwa*/*Krishna Kumar Singh* = anti-re-promulgation + mandatory laying (seven-judge, 5:2); ***Subhash Desai* (2023)** = a floor test needs **objective material**, and intra-party dissent is not such material — but the Court granted **no relief** because the incumbent CM had resigned without facing the test. Do **not** say *Subhash Desai* reinstated a government, disqualified anyone, or decided the *Nabam Rebia* Speaker-removal question (that was **referred to a seven-judge Bench** and is undecided).

- **Assent doctrine (Art 200/201):** *State of Tamil Nadu v. Governor of Tamil Nadu* (8 Apr 2025, 2025 INSC 481) prescribed timelines/used deemed assent on its facts; the later five-judge **Article 143 opinion of 20 Nov 2025 (2025 INSC 1333)** held there are **no court-created rigid timelines or automatic deemed assent**, though indefinite inaction is reviewable — cite the 20 Nov 2025 position as controlling and verify before dating.

- Sarkaria/Punchhi/NCRWC recommendations are **proposals, not law** — do not present them as enacted.

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025 -→

MUST-KNOW FACTS

1. Distinguish **Art 361** (Governor's personal immunity) from **Art 194** (members' freedom of speech) — do not attribute Art 194 immunity to the Governor.

2. □□ Case propositions, not name-drops: *Shamsher Singh* = act on advice; *Bommai* = reviewable Art 356 + floor test; *Rameshwar Prasad* = mala fide dissolution void; *Nabam Rebia* = discretion is narrow; *Wadhwa*/*Krishna Kumar Singh* = anti-re-promulgation + mandatory laying (seven-judge, 5:2); ***Subhash Desai* (2023)** = a floor test needs **objective material**, and intra-party dissent is not such material — but the Court granted **no relief** because the incumbent CM had resigned without facing the test. □□ Do **not** say *Subhash Desai* reinstated a government, disqualified anyone, or decided the *Nabam Rebia* Speaker-removal question (that was **referred to a seven-judge Bench** and is undecided).

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → 6.12 Factual-risk and current-status controls

HIGH

Foundation · Recent PYQ Integration (2024-2025)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2025	Prelims GS-I	54	Governor's discretion; President reserving a State bill	Objective question; official Set-A key available locally, answer not inferred	Key available locally (official Set-A answer key present); answer not recorded here	Cover the named fact/concept and its likely statement-level distinctions.
2025	Prelims GS-I	59	Governor's immunity; immunity for words spoken in a State Legislature	Objective question; official Set-A key available locally, answer not inferred	Key available locally (official Set-A answer key present); answer not recorded here	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Recent PYQ Integration (2024-2025)

HIGH

Foundation · Recent PYQ Integration (2024-2025)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Recent PYQ Integration (2024-2025).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *2024-2025 question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2024-2025.md.* ***Answer-key rule:*** *The official 2024-2025 Prelims Set-A keys are present in the repository and CSAT Set-A keys are supplied; even so, no option or answer is recorded or inferred in this integration.* ***Years represented:*** *2025* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *2*

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Recent PYQ Integration (2024-2025)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Governor's discretion; President reserving a State bill

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Governor's discretion; President reserving a State bill	**Dimension 2** Governor's immunity; immunity for words spoken in a State Legislature
Dimension 3 This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed	**Dimension 4** less than !-- END GENERATED PYQ INTEGRATION: 2024-2025 -⟶

STATIC THEORY

- Governor's immunity; immunity for words spoken in a State Legislature

- This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed/answer-free objective question into a solved answer.

- less than !-- END GENERATED PYQ INTEGRATION: 2024-2025 -⟶

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -⟶

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2018	Prelims GS-I	41	Governor of State criminal proceedings and emoluments protection	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2019	Prelims GS-I	66	Recommendations on ideal Governor appointment criteria	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2018-2023.md.* ***Answer-key rule:*** *The official 2018-2023 Prelims/CSAT keys are not held locally; no option or answer has been inferred.* ***Years represented:*** *2018, 2019* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *2*

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Governor of State criminal proceedings and emoluments protection

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Governor of State criminal proceedings and emoluments protection	**Dimension 2** Recommendations on ideal Governor appointment criteria
Dimension 3 The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl	**Dimension 4** less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

STATIC THEORY

- Recommendations on ideal Governor appointment criteria

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Office map: *Articles 153-162 govern the Governor and State executive power; Articles 163-164 govern advice, discretion, ministers and responsibility; Articles 165-167 govern the Advocate General, business and the Chief Minister's information duties. Article 361 immunity protects the person, not unlawful State action.* ***Advice and discretion:*** *Shamsher Singh makes ministerial advice the default. Express or necessarily implied exceptions remain narrow: specified Article 200 choices, government formation, objective floor-test situations, Article 356 reporting and specially worded constitutional responsibilities.* ***Formation and confidence:*** *the Governor invites the person most likely to command Assembly confidence and uses an early floor test where objective doubt exists. Bommai, Rameshwar Prasad and Subhash Desai reject subjective arithmetic, speculative dissolution and use of a floor test to settle an internal party dispute.* ***Tenure and neutrality:*** *Article 156 pleasure does not make the Governor a Union employee. B.P. Singhal bars arbitrary, capricious or mala fide removal; Sarkaria, Punchhi and NCRWC proposals remain reform recommendations, not law.* ***Article 200 current rule:*** *Special Reference No. 1 of 2025 identifies three options—assent, reserve, or withhold and return a non-Money Bill with comments. The Governor chooses among them in discretion and is not bound by State-Cabinet advice for that choice. Merits review, rigid timelines and deemed assent are unavailable; prolonged, unexplained and indefinite inaction permits only a limited mandamus to discharge the function within a reasonable time.* ***Article 201:*** *Presidential assent/withholding is not merits-justiciable and carries no court-created deadline. The President need not seek Article 143 advice whenever a Bill is reserved, and courts cannot adjudicate a Bill's contents before it becomes law.* ***Ordinance:*** *Article 213 requires the relevant House or Houses not to be in session and immediate action. D.C. Wadhwa and Krishna Kumar Singh condemn routine re-promulgation, require laying and preserve judicial review of satisfaction.* ***Clemency correction:*** *Article 161 is controlled by the offence-law nexus to State executive power; it can include pardon of a death sentence within that field. Unlike Article 72, it has no court-martial limb and no separate power over every death sentence regardless of legislative field. Maru Ram, State of Haryana v. Raj Kumar @ Bittu and A.G. Perarivalan make Cabinet advice binding and delay reviewable.* ***Chief Minister and Council:*** *Article 164 appointment and collective responsibility run to the Legislative Assembly. Article 164(1A) caps ministers at fifteen per cent of Assembly strength with a minimum of twelve; clause (1B) bars defectors. Article 167 parallels the Union Article 78 information bridge.* ***Four-ledger/PYQ control:*** *all direct and supporting 2018-2025 Governor, ordinance, defection, assent and federal-neutrality demands were reconciled; State-legislature procedure remains owned by Topic 20.*

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 30–32 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/Governor-and-CM.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 30–32 (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/Governor-and-CM.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — THE GOVERNOR (Art 153–162)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PART A — THE GOVERNOR (Art 153–162).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → PART A — THE GOVERNOR (Art 153–162)

HIGH

Advanced · Appointment & conditions □

GS-II Indian Polity

INTRO & ORIGIN

□ **Not elected — appointed by the President** by warrant (Canadian model, not the US elected-Governor model). A "nominee of the Centre" but (SC 1979) an **independent constitutional office**, not a Central-govt employee. **Qualifications (Art 157):** citizen of India + **35 years**. Two **conventions** (often breached): be an **outsider** to the state, and appointed after **consulting the CM**. □ Not a member of Parliament/state legislature; no other office of profit; oath by the **HC Chief Justice**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Not elected — appointed by the President by warrant (Canadian model, not the US elected-Governor model). A "nominee of the Centre" but (SC 1979) an **independent constitutional office**, not a Central-govt employee. **Qualifications (Art 157):** citizen of India + **35 years**. Two **conventions** (often breached): be an **outsider** to the state, and appointed after **consulting the CM**. Not a member of Parliament/state legislature; no other office of profit; oath by the **HC Chief Justice**.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Appointment & conditions □

HIGH

Advanced · Term & removal □

GS-II Indian Polity

INTRO & ORIGIN

□ **5-year term** but holds office during the **pleasure of the President — no security of tenure**, removable anytime, no grounds specified. Can be **transferred** and **reappointed**; continues till successor takes charge (no interregnum). □□ Mass changes after regime change (V.P. Singh 1989; Narasimha Rao 1991).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. 5-year term but holds office during the **pleasure of the President — no security of tenure**, removable anytime, no grounds specified. Can be **transferred** and **reappointed**; continues till successor takes charge (no interregnum). □□ Mass changes after regime change (V.P. Singh 1989; Narasimha Rao 1991).

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Term & removal □

HIGH

Advanced · Powers □

GS-II Indian Polity

INTRO & ORIGIN

□ Executive (all state actions in his name; appoints **CM, Advocate-General, State Election Commissioner, SPSC chair/members**; recommends President's Rule; often has a Chancellor/VC role **under state university statutes, not the Constitution**) · Legislative (summons/prorogues, dissolves Assembly; **nominates 1/6 of Legislative Council**; assents/returns/**reserves bills for President**; **ordinances Art 213**) · Financial (money bills need his recommendation; **State Finance Commission**) · Judicial (**Art 161** — cannot **pardon** a death sentence, but may suspend/remit/commute it; cannot deal with court-martial sentences, unlike the President).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Executive (all state actions in his name; appoints **CM, Advocate-General, State Election Commissioner, SPSC chair/members**; recommends President's Rule; often has a Chancellor/VC role **under state university statutes, not the Constitution**) · Legislative (summons/prorogues, dissolves Assembly; **nominates 1/6 of Legislative Council**; assents/returns/**reserves bills for President**; **ordinances Art 213**) · Financial (money bills need his recommendation; **State Finance Commission**) · Judicial (**Art 161** — cannot **pardon** a death sentence, but may suspend/remit/commute it; cannot deal with court-martial sentences, unlike the President).

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Powers □

HIGH

Advanced · Constitutional position & discretion □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Constitutional (express) discretion	Situational (implied) discretion
□ Reserving a bill for the President (Art 200)	□ Appointing CM in a hung Assembly / on sudden death
□ Recommending President's Rule	□ Dismissing a CoM that has lost confidence
□ Functions as UT administrator (additional charge)	□ Dissolving the Assembly if CoM lost majority
□ Article 371A/371H and specified Sixth Schedule responsibilities	

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Constitutional position & discretion □

HIGH

Advanced · Constitutional position & discretion □

GS-II Indian Polity

INTRO & ORIGIN

□ **Nominal executive** (Art 154, 163, 164). Unlike the President, (a) the Governor **can act in discretion**, and (b) Article 163 lacks Article 74's equivalent express binding-advice command. □□ This does **not** create general personal discretion: *Shamsher Singh* (1974) makes aid and advice the default.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □□ **Federal duality:** the Governor is the constitutional head of the State but is appointed by the President and serves during presidential pleasure. “Centre's representative” is analytical shorthand, not legal authority to obey partisan Union directions.

MUST-KNOW FACTS

1. Nominal executive (Art 154, 163, 164). Unlike the President, (a) the Governor **can act in discretion**, and (b) Article 163 lacks Article 74's equivalent express binding-advice command. □□ This does **not** create general personal discretion: *Shamsher Singh* (1974) makes aid and advice the default.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Constitutional position & discretion □

HIGH

Advanced · PART B — CHIEF MINISTER (Art 164, 167) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Real executive (de facto)** — head of government; parallels the PM. **Appointed by the Governor** (leader of majority; discretion in hung house / sudden death). Need not prove majority *before* appointment; **non-MLA CM allowed 6 months**; may be from **either House**. Holds office during Governor's pleasure but **can't be dismissed while he holds a majority**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ *B.P. Singhal v. Union of India* (2010): Article 156 pleasure does not permit arbitrary, capricious, unreasonable or mala fide removal. The Union need not routinely disclose reasons, but must justify the action if a prima facie case of arbitrariness is established.

MUST-KNOW FACTS

1. Real executive (de facto) — head of government; parallels the PM. **Appointed by the Governor** (leader of majority; discretion in hung house / sudden death). Need not prove majority *before* appointment; **non-MLA CM allowed 6 months**; may be from **either House**. Holds office during Governor's pleasure but **can't be dismissed while he holds a majority**.

2. *B.P. Singhal v. Union of India* (2010): Article 156 pleasure does not permit arbitrary, capricious, unreasonable or mala fide removal. The Union need not routinely disclose reasons, but must justify the action if a prima facie case of arbitrariness is established.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → PART B — CHIEF MINISTER (Art 164, 167) □

HIGH

Advanced · Powers

GS-II Indian Polity

INTRO & ORIGIN

□ **CoM:** recommends ministers, allocates/reshuffles portfolios, presides over CoM; his resignation/death **dissolves the whole CoM**. **Governor:** principal channel of communication (**Art 167**); advises on key appointments. **Legislature:** advises summoning/dissolution; announces policies. **Other:** member of the **Inter-State Council** and **NITI Aayog Governing Council**; a State's planning-board arrangements vary. Chief Ministers serve as Zonal Council vice-chairpersons by annual rotation.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. CoM: recommends ministers, allocates/reshuffles portfolios, presides over CoM; his resignation/death **dissolves the whole CoM**. **Governor:** principal channel of communication (**Art 167**); advises on key appointments. **Legislature:** advises summoning/dissolution; announces policies. **Other:** member of the **Inter-State Council** and **NITI Aayog Governing Council**; a State's planning-board arrangements vary. Chief Ministers serve as Zonal Council vice-chairpersons by annual rotation.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Powers

HIGH

Advanced · PART C — STATE COUNCIL OF MINISTERS (Art 163, 164) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Art 163:** CoM (with CM as head) aids & advises the Governor, except where he acts in discretion. □ **Art 164:** CM appointed by Governor, other ministers on CM's advice; **91st Amdt (2003):** total ministers **≤ 15% of the Assembly** and **not fewer than 12**; defector barred from ministership. **Collectively responsible to the Legislative Assembly.** Three ranks (Cabinet / State / Deputy). □ Compulsory **Tribal Welfare Minister** in Chhattisgarh, Jharkhand, MP, Odisha (Bihar excluded by 94th Amdt).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Art 163: CoM (with CM as head) aids & advises the Governor, except where he acts in discretion. **Art 164:** CM appointed by Governor, other ministers on CM's advice; **91st Amdt (2003):** total ministers **≤ 15% of the Assembly** and **not fewer than 12**; defector barred from ministership. **Collectively responsible to the Legislative Assembly.** Three ranks (Cabinet / State / Deputy). Compulsory **Tribal Welfare Minister** in Chhattisgarh, Jharkhand, MP, Odisha (Bihar excluded by 94th Amdt).

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → PART C — STATE COUNCIL OF MINISTERS (Art 163, 164) □

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

suspension, remission or commutation; only the President has pardon power for death and court-martial sentences.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: Governor is elected

CORRECT: appointed by the President (min age **35**, not 25).

WRONG: Ministerial advice is binding on the Governor

CORRECT: not expressly binding (no 42nd-Amdt equivalent).

WRONG: Governor can pardon death sentences

CORRECT: cannot **pardon**, though Art 161 permits

WRONG: Governor nominates members to the Legislative **Assembly**

CORRECT: nominates **1/6 to the Legislative Council** (Anglo-Indian Assembly nomination now lapsed).

WRONG: Governor has a fixed 5-yr tenure

CORRECT: holds office during **President's pleasure**, no security of tenure.

WRONG: State CoM cap is 15% of both Houses

CORRECT: ≤ 15% of the Assembly, minimum 12 (91st Amdt).

WRONG: A non-MLA can never be CM

CORRECT: allowed for **6 months**.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ □ **Governor's assent — current doctrine:** *State of Tamil Nadu v. Governor of Tamil Nadu* (8 Apr 2025, 2025 INSC 481) prescribed timelines and used deemed assent in the facts before it. The later five-judge Article 143 opinion, *In re: Assent, Withholding or Reservation of Bills* (20 Nov 2025, 2025 INSC 1333), held that Articles 200/201 do not permit court-created rigid timelines or automatic deemed assent; prolonged, unexplained and indefinite inaction can nevertheless attract limited judicial scrutiny and mandamus. □ □□ Recurrent **Governor vs elected government** friction (Tamil Nadu, Kerala, Punjab, West Bengal) — bill

INTRO & ORIGIN

delays, VC appointments, and use of discretion.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The Governor has become an agent of the Centre rather than a constitutional head." Critically examine. Should the Governor's discretionary powers be codified? (Sarkaria, Punchhi, Venkatachaliah recommendations.) Governor's role in bill assent after the 2025 Presidential Reference — balancing federalism & accountability. less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -→

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Mains angles

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2022	GS-II	12	Governor's legislative powers and r e-promulgatio n of ordinances	Discuss · 15 marks · 250 words	Routed to owning topic	Prepare context, core dimensions, evidence/exa mples, counterpoint and a concise conclusion.

MAINS ANGLE

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.* ***Years represented:*** *2022* ***Paper(s):*** *GS-II* ***Routed question demands:*** *1*

STUDY LINK
Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Governor's legislative powers and re-promulgation of ordinances

Advanced learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Governor's legislative powers and re-promulgation of ordinances	**Dimension 2** The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl
Dimension 3 less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -—›	

STATIC THEORY

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

Governor, Chief Minister & State Council of Ministers (Articles 153–167) — ADVANCED / COMPLETE → What this owner must now support

End of Register Notes - UPSC Agent / Copilot CLI